MUTUAL NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

Lextria Research a firm with its principal place of business at, #21 – MUTBI 4th floor, behind MMMC, Manipal, Karnataka, India - 576104 and/or any of its Affiliates ("**Lextria Research**") and, **[Client],** residing/having office at (Address/Registered Address) ("Client")

Lextria Research and **(Client)** may disclose to each other Confidential Information (as hereinafter defined) for the following:

PURPOSE: (Scope of Service in Breif)

NOW, THEREFORE, in consideration of the foregoing, **Lextria Research** and **Client** mutually agree as follows:

1. For the purposes of this Agreement, "**Confidential Information**" shall mean all information in any and all medium that has been disclosed or will be disclosed by the party (herein after defined as the "**Disclosing Party**") to the other party (herein after defined as the "**Receiving Party**") including, without limitation, data, technology, source code, know- how, inventions, discoveries, designs, processes, techniques, methods, performance characteristics, testing strategies, formulations, models, equipment, algorithms, software programs, documents, specifications, information concerning research and development work, and/or trade and business secrets. **Confidential Information** will also include information disclosed by the Disclosing Party, which relates to current, planned or proposed products, licensing or sales activities, policies, practices, finances, revenue, pricing, cost or profits, marketing and business plans, forecasts, projections and analyses, financial information, customer information and third-party confidential information. Each party shall determine in its sole discretion what information and materials it shall disclose to the other party.

2. For the purposes of this Agreement, Confidential Information shall not include any information which, as evidenced by written

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records:

(a) is already known to the Receiving Party or is publicly available at the time of disclosure;
(b) becomes public domain after disclosure through no act of the Receiving Party in breach of this Agreement;
(c) is disclosed to the Receiving Party by a third party who is not, to the best knowledge of the Receiving Party, in breach of an obligation of confidentiality;
(d) was or is independently developed by the Receiving Party without use of the Confidential Information disclosed by the Disclosing Party; or
(e) is disclosed pursuant to a court order, provided the Receiving Party at the request and expense of the Disclosing Party, uses reasonable efforts to limit such disclosure to the extent requested.

3. The Receiving Party shall not acquire any rights in the Confidential Information. This Agreement grants no license to the Confidential Information by either party to the other, either directly or by implication, stopple or otherwise.

4. The Receiving Party agrees that it shall hold all Confidential Information in strict confidence and to take all steps to safeguard the Confidential Information with reasonable care, including, without limitation, those steps it takes to protect its own Confidential Information of a similar nature.

5. The Receiving Party shall not;
(a) use copy or reproduce the Confidential Information except for the Purpose.
(b) disclose or otherwise provide any Confidential Information to any third party without the prior written consent of the Disclosing Party;
(c) alter, reverse engineer, decompile, disassemble, or otherwise modify the Confidential Information.

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6. The Receiving Party agrees to limit its internal disclosure of Confidential Information only to those of its employees who need to know such information and who have signed a written agreement with the Receiving Party binding them to terms and conditions substantially like those of this Agreement. In any event, the Receiving Party shall be fully responsible for any acts and omissions of its employees in breach of this Agreement.

7. Upon the expiration or termination of this Agreement or at the earlier written request of the Disclosing Party, the Receiving Party shall return to the Disclosing Party or, subject to the Disclosing Party's written instructions, destroy and certify such destruction, all Confidential Information in tangible form in its possession.

8. The Disclosing Party represents that it has the right to make the disclosures made under this Agreement. The Confidential Information disclosed under this Agreement is delivered "as is" and the Disclosing Party makes no representation of any kind with respect to the accuracy of such Confidential Information or its suitability for any particular use.

9. Nothing in this Agreement shall preclude either party from making, using, marketing, licensing, or selling any independently developed technology, product or material, whether similar or related to the Confidential Information disclosed under this Agreement, provided the party has not done so in breach of this Agreement.

10. This Agreement shall remain in effect for three (3) years following the last date of disclosure of any Confidential Information unless terminated earlier by either party by providing thirty (30) days advance written notice to the other party of its desire to terminate this Agreement. Upon expiration or termination of this Agreement, the Receiving Party shall act in accordance with Section 7 above. The parties' obligations with respect to each other's Confidential Information shall survive any expiration or termination of this

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Agreement.

11. Since unauthorized disclosure or use of Confidential Information will diminish the value of the proprietary interests that are the subject of this Agreement, if the Receiving Party breaches any of its obligations hereunder, the Disclosing Party may be entitled to equitable relief to protect its interest therein, including but not limited to injunctive relief, as well as money damages.

12. The relationship of the parties is that of independent companies. This Agreement does not create an agency, partnership, or similar relationship between the parties. Neither party hereby acquires any rights to use in advertising, publicity or other marketing activities any name, trade name, trademark or other designation of the other party.

13. This agreement and all disputes and claims arising from it shall be governed by and construed in accordance with Indian law and the parties irrevocably agree that the courts in Udupi/Mangalore shall have non-exclusive jurisdictions for all matters, which may arise out of or in connection with this agreement.

14. Any notices, requests, demands or other communications required or permitted under this Agreement shall be in writing and shall be sufficiently communicated if delivered in person, sent by facsimile or if sent by registered mail, return receipt requested, to the recipient party at its above written address or to such other address as such party may have designated for such purpose by notice previously given to the other party. Notices shall be deemed to have been received if delivered in person, on the same day; if sent by facsimile, twenty-four (24) hours after transmission; if sent by registered mail, seven (7) days after deposit into the mail system and further agree to substitute for such invalid provision a valid provision, which most closely approximates the intent and economic effect of the invalid provision.

15. Either party may not assign this Agreement without the prior

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written consent of the other party. Notwithstanding the foregoing, either party may, without the prior consent of the other party, assign or transfer this Agreement to its affiliates or as part of a corporate reorganization, consolidation, merger, or sale of the relevant assets; provided, however, that such party notifies the other party within thirty (30) days following any such assignment.

16. Any failure by either party to enforce strict performance by the other party of any provision herein shall not constitute a waiver of the right to subsequently enforce such provision or any other provision of this Agreement.

17. This Agreement is the complete and exclusive statement of the agreement between the parties and supersedes all prior written and oral communications and agreements relating to the subject matter hereof. This Agreement may only be modified by a written agreement signed by persons duly authorized to sign agreements on behalf of the parties

IN WITNESS WHEREOF, each party hereto has executed this Agreement by a representative duly authorized as of the date set forth below.

Lextria Research	**(CLIENT)**
By its Authorized Signatory: Pranav Bhat Signature: Date:	 Signature: Date:

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